

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: August 20, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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101	Douglas vs. Gordon Lane Healthcare, LLC, 23-01330147	Plaintiffs Ellen Douglas, individually and as successor-in-interest to Bruce Douglas; Megan Douglas; and Cameron Douglas (collectively, "Plaintiffs"), move for an order compelling the person most knowledgeable ("PMK") for Defendant, Sun Mar Management Services ("Sun Mar"), to appear and testify at deposition and to produce documents at deposition as specified in the deposition notice served on March 19, 2026. Plaintiffs also move for an order awarding monetary sanction against Sun Mar, in the sum of \$1,560. Plaintiffs contend that Sun Mar's PMK appeared for and testified at deposition on April 8, 2026, but refused to produce any of the materials or documents sought by

Plaintiffs as specified in the deposition notice served on March 19, 2026 (the "deposition notice"). Plaintiffs also contend that Sun Mar's subsequent Supplemental Response to 10 of the 30 requests for production on July 9, 2026 does not cure the prior failure to provide documents, and that Sun Mar did not provide any response at all to 20 of the requests, which are at issue in this motion. Plaintiffs additionally contend that while Sun Mar objected to the initial deposition notice, Sun Mar did not serve any objections to the operative deposition notice, such that it waived any error or irregularity in that notice, and that the objections to the prior notice do not transfer to the subsequent operative deposition notice, but that even assuming Sun Mar's boilerplate objections were properly asserted, the objections lack merit. Lastly, Plaintiffs contend that the imposition of monetary sanctions is warranted for the misuse of the discovery process in failing to respond or to submit to an authorized method of discovery.

Defendants, Gordon Lane Healthcare, LLC; Anaheim Healthcare Center, LLC; and Sun Mar (collectively, "Defendants") have filed an opposition. Defendants contend that Sun Mar timely objected to Plaintiffs' deposition notice on March 13, 2026, as the deposition topics and requests for production did not change, that objections need not be revived by Defendant, and that Plaintiffs produce no authority to support the position that new objections were required to be served in response to the slightly amended deposition notice. Defendants also contend that neither Code of Civil Procedure section 2025.410(a) or Section 2025.450(a) state that objections that are waived. Defendants additionally contend that Plaintiffs have failed to meet the burden of showing that the documents sought are both relevant to the subject matter of the action and that specific facts justify discovery, especially where Defendant has attempted to find an agreeable middle ground with a Stipulated Protective Order during meet and confer efforts, and that Sun Mar's objections are appropriate and valid. Defendants further contend that Plaintiffs' motion is a misuse of the discovery process, and that the imposition of monetary sanctions here would be unjust such that Plaintiffs' request for monetary sanctions should be denied.

Requests for Production

Here, Plaintiffs served the operative deposition notice on March 19, 2026, with the deposition set for April 8, 2026. (Schneberg Decl., ¶¶ 2-4, Ex. A; ROA 136, Declaration of Laura K. Sitar ("Sitar Decl."), ¶ 3.) Sun Mar did not object to this operative deposition notice, nor did it file a motion to stay or question or a motion for protective order with respect to the requests for production of documents. (Schneberg Decl., ¶¶ 6-7.)

		Prior to the operative deposition notice, Plaintiffs' counsel served an earlier deposition notice on March 5, 2026, with a deposition set for March 19, 2026. (Schneberg Decl., ¶¶ 34-35, Ex. E.) On March 13, 2026, Sun Mar served a written objection to this earlier notice, stating that its counsel and deponent were unavailable on that date and asserted objections to the deposition categories and document requests. (Schneberg Decl., ¶¶ 36-37, Ex. F; Sitar Decl., ¶ 4, Ex. A.) The question is whether Sun Mar's objection to the initial deposition notice may be considered where Sun Mar did not serve any objection to the subsequent, operative deposition notice where both deposition notices contain the same requests for production of documents. While Sun Mar contends that its response to the initial deposition notice is effective as an objection to the subsequent, operative deposition notice, and that it is not required to serve objections to the operative deposition notice because it contained the same requests for production as the initial deposition notice, Sun Mar cites to no authority for this proposition. Sun Mar also cites to no authority for the proposition that the objections referenced in Code of Civil Procedure section 2025.410 do not include objections to the requests based on relevance or other substantive objections. On the other hand, Plaintiffs cite to no authority which requires a party to serve an objection as to each amended deposition notice which involves the same requests for production of documents, or which supports that the failure to do so results in a waiver of objections. Logically, it would appear that Sun Mar would be required to serve an objection as to the operative deposition notice. However, as there is no authority cited supporting that Sun Mar's prior objections to the same requests for production could not be maintained, the Court will consider them to the extent that Sun Mar seeks to justify any objection in opposition to this motion. The 20 document requests at issue to which Sun Mar has provided no supplemental response include Request Nos. 1, 4 to 13, 16 to 19, 24, 25, and 28-30. With regards to good cause, Plaintiffs' counsel provides that each of the requests at issue is directed at obtaining information necessary for Plaintiffs' full and fair evaluation of the facts, liabilities. (Schneberg Decl., ¶ 17.) In addition, Plaintiffs show that good cause exists for each of the requests at issue as the documents sought is relevant to the claims at issue as the documents are either themselves admissible or
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		appear reasonably calculated to lead to the discovery of admissible evidence. (Schneberg Decl., ¶¶ 18-33.) To oppose the production of document in response to the requests at issue, Sun Mar submitted an opposition as well as an unauthorized opposition separate statement. Nevertheless the Court considers the opposition separate statement. Sun Mar fails to justify any objection made to Request Nos. 1, 4 to 13, 24, 25, and 30. Additionally, “[i]f only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.” (Code Civ. Proc. § 2031.240(a).) To the extent that Sun Mar’s response to the initial deposition notice provided that documents would be produced, none have been produced in response to the requests at issue. To the extent that Sun Mar is withholding documents to any of the requests at issue based on objections, the response to the initial deposition notice does not “[i]dentify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.” (Code Civ. Proc. § 2031.240(b)(1).) To the extent that Sun Mar claims that the documents sought are in the custody or control of Gordon Lane Healthcare, LLC and/or Anaheim Healthcare, LLC, Sun Mar may provide a proper response. Sun Mar assertions that it has no ownership interest in Gordon Lane Healthcare, LLC or Anaheim Healthcare, LLC, and does not manage either entity, but simply shares common ownership with each facility and provides consulting services to each facility, is not supported by any evidence, and in any event, may be stated in a response. For example, a response to a request for production includes the following mandate: A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling, shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item. (Code Civ. Proc. § 2031.230.)
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102	Daniels vs. Balderas, 25-01515105	<i>Off-calendar.</i>
103	Gonzalez vs. The Tjx Companies Inc, 26-01544831	Defendant Thomasina Renee Gagnon ("Defendant") demurs to the Complaint of plaintiff Otto Perez Gonzalez ("Plaintiff"). Defendant argues the claim for punitive damages and supporting allegations must be stricken because the allegations of malice and oppression are insufficient, unsupported by facts, and vague and uncertain. Plaintiff's action arises out of a motor vehicle collision. Plaintiff alleges that Defendant was traveling at a high rate of speed while using a cell phone when Defendant's vehicle crashed into Plaintiff's vehicle. Plaintiff further alleges that Defendant acted with knowledge that probable serious injury to others would result in conscious disregard for the safety of others. These allegations are not vague or incomprehensible. Thus, the Demurrer for uncertainty is OVERRULED. (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) Defendant's argument that the allegations are insufficient to support a claim for punitive damages is not a proper ground for a demurrer, as it does not go to whether any of the asserted causes of action state sufficient facts or any of the other grounds that may be raised in a demurrer. (See Code Civ. Proc., § 430.10.) Because Defendant is attacking a remedy rather than an entire cause of action, the argument should be raised in a motion to strike. Based on the above, the Demurrer is OVERRULED in its entirety. Defendant to file an answer within 20 days. The Case Management Conference is continued to October 22, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
104	Zavala vs. Becker, 24-01387754	Defendant Karl W. Becker ("Defendant") moves to compel plaintiff Regina M. Zavala ("Plaintiff") to serve further responses to Defendant's Special Interrogatories, Set Two, and imposing monetary sanctions against Plaintiff in the amount of \$3,537.50.